



COURSE SYLLABUS

California Law & Ethics for Mental Health Professionals: Navigating the Evolving Clinical Landscape

Revised August 2026

Course Information

Course Title	California Law & Ethics for Mental Health Professionals: Navigating the Evolving Clinical Landscape
Course Level	Introductory to Intermediate
Target Audience	LMFTs, LCSWs, LPCCs, LEPs, and Registered Associates
Instructional Method	Asynchronous Distance Learning (online text, instructional video modules, downloadable resources, and case studies)
CE Credits	6.0 CE Hours (360 Minutes of Active Instruction)
Presenter/Author	Candice Fuimaono, MS, LMFT

Educational Goals

Upon completion of this course, participants will:

- Strengthen the ability to identify and respond to legal and ethical issues encountered in California mental health practice.
- Enhance knowledge of California laws, regulations, professional standards, and Board of Behavioral Sciences expectations.
- Improve informed-consent, confidentiality, privilege, documentation, record-management, and risk-management practices.
- Increase confidence in making legally and ethically sound decisions involving minors, digital practice, crisis response, and professional boundaries.
- Support client welfare, professional accountability, and continuity of care across private and organizational settings.

Measurable Learning Objectives

By the conclusion of this 6-hour training, participants will be able to:

1. Identify four California legal, regulatory, or ethical sources that govern mental health practice and distinguish scope of practice from scope of competence.
2. Prepare an informed-consent checklist that includes required fee, privacy, telehealth, digital-communication, and professional-boundary elements.
3. Distinguish confidentiality, psychotherapist-patient privilege, and lawful disclosure and select an appropriate response to a subpoena or request for records.
4. Apply California minor-consent, parental-involvement, custody, and mandated-reporting standards to a clinical case example.

5. Apply California duty-to-protect, crisis-intervention, and documentation standards to a case involving suicide risk or a serious threat of violence.
6. Prepare a record-management and practice-continuity plan that addresses client access, retention, security, practice closure, professional wills, and licensure or business-risk concerns.

Timed Outline and Summary of Main Points

The six instructional modules and required Course Integration Capstone provide 360 minutes of active instruction for 6.0 CE hours. The final examination and mandatory course evaluation are administrative completion activities and are not counted toward CE instructional minutes.

Module 1: California Regulatory Frameworks, BBS Requirements, and Professional Competence

Recorded Instructional Runtime: 60 Minutes 7 Seconds

Summary of Main Points:

- California laws, regulations, and professional ethical standards
- Board of Behavioral Sciences roles and expectations
- Common disciplinary concerns and risk factors
- Scope of practice versus scope of competence
- Establishing competence with new populations or modalities
- Consultation, referral, and documentation of competence decisions
- Application of professional ethical standards

Module 2: Informed Consent, Telehealth, and Digital Boundaries

Recorded Instructional Runtime: 58 Minutes 8 Seconds

Summary of Main Points:

- Legal and ethical requirements for informed consent
- Fee disclosures and privacy-notice requirements
- Telehealth-specific consent and emergency planning
- Digital communication policies and procedures
- Social media ethics and professional boundaries
- Texting, email, and electronic communication risks
- Application through digital-boundary case examples

Module 3: Confidentiality, Privilege, and Lawful Disclosure

Recorded Instructional Runtime: 62 Minutes 35 Seconds

Summary of Main Points:

- Legal and ethical foundations of confidentiality
- Mandatory and permissive disclosure exceptions
- Psychotherapist-patient privilege and holder-of-privilege considerations
- Mandated reporting and client-safety obligations
- Subpoenas, court orders, and requests for records
- Consultation, client communication, and documentation
- Application through disclosure scenarios

Administrative Activity (not included in instructional minutes): Mid-course knowledge check

Module 4: Working with Minors: Consent, Parents, Custody, and Reporting

Recorded Instructional Runtime: 58 Minutes 18 Seconds

Summary of Main Points:

- Minor-consent laws and treatment requirements
- California Family Code considerations

- Documentation requirements for minor treatment
- Parental rights, custody, and access to information
- High-conflict family and divorce situations
- Mandated-reporting obligations involving minors
- Clinical decision-making with self-referred minors

Module 5: Crisis Management, Tarasoff Duties, and Professional Liability

Recorded Instructional Runtime: 53 Minutes 21 Seconds

Summary of Main Points:

- California duty-to-protect standards
- Duty to warn versus duty to protect
- Suicide-risk assessment and safety planning
- Involuntary evaluation and emergency-response considerations
- Crisis documentation and consultation
- Professional negligence and liability concerns
- Risk-management strategies for clinicians

Module 6: Record Keeping, Business Ethics, and Practice Continuity

Recorded Instructional Runtime: 55 Minutes 3 Seconds

Summary of Main Points:

- Client rights to inspect or obtain records
- Record-retention and security requirements
- Lawful limitations on record access
- Documentation, billing, advertising, and business-practice ethics
- Practice closure and continuity-of-care procedures
- Professional wills and transfer of records
- Licensure maintenance and professional accountability

Required Course Integration Capstone: Applying California Law and Ethics in Complex Clinical Decisions

Recorded Instructional Runtime: 14 Minutes 5 Seconds

Summary of Main Points:

- Integration of all six course domains through one complex telehealth case
- Scope, competence, consultation, and prioritization of urgent clinical and legal issues
- Informed consent, telehealth location and privacy, and digital-boundary decisions
- Confidentiality, privilege, minor consent, custody authority, and parent record requests
- Mandated-reporting, suicide-risk, and duty-to-protect analysis
- Proportionate action, documentation, follow-up, and professional accountability

Required instructional placement: after Module 6 and before the final examination.

Administrative Activities (not included in instructional minutes): Final examination and mandatory course evaluation.

Course Completion Requirements

- Complete all six required instructional modules, the required Course Integration Capstone, and embedded learning activities.
- Earn a score of at least 70% on the final examination. Participants may repeat the examination until the passing score is achieved.
- Complete the course-specific evaluation, including a rating for each measurable learning objective.
- Submit the required course-completion attestation for asynchronous distance learning.
- A CE certificate is issued only after all completion requirements are satisfied.

References

- California Association of Marriage and Family Therapists. (2019). CAMFT code of ethics. CAMFT.
- Caldwell, B. E. (2020). User's guide to the 2019 CAMFT code of ethics. Ben Caldwell Labs.
- Zur, O. (2021). Digital ethics and telehealth in psychotherapy: Navigating the boundaries of remote care. Routledge.